

M/S Pratibha Industry v. State of U.P.

Allahabad High Court · Division Bench · 17 February 2020 · WRIT - C No. 5648 of 2020 · **Writ disposed; objection under clause 6.5 directed; recovery kept in abeyance pending the Executive Engineer's decision.**

HEADNOTE

Where a consumer disputes electricity bills and challenges a recovery citation, the High Court will not keep the writ pending on merits. The Executive Engineer under clause 6.5 of the Electricity Supply Code, 2005 is the appropriate authority to consider the objection. Recovery pursuant to the citation is to remain in abeyance subject to that decision in accordance with law.

FACTUAL SUMMARY

The petitioner, M/s Pratibha Industry, was an electricity consumer. It initially obtained a domestic connection, later established a rice mill and converted the connection to commercial. It claimed the mill closed on 18 June 2016. Thereafter various fluctuating demands were sent, and a recovery citation dated 23 June 2020 was issued. The petitioner disputed those bills and challenged the citation by this writ petition.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

disputed bills and recovery citation

HOLDING

A consumer who disputes electricity bills and challenges a recovery citation is to be relegated to the Executive Engineer under clause 6.5 of the Electricity Supply Code, 2005. The High Court will not keep the writ pending on merits. If an objection is filed within a week, the Executive Engineer shall consider it and pass an appropriate order in accordance with law within one month, and recovery pursuant to the citation shall remain in abeyance subject to that decision. ¶ 1

PRINCIPLE TAGS

clause-6.5-alternate-remedy The writ challenging disputed bills and a recovery citation was disposed by directing a clause 6.5 objection to the Executive Engineer rather than deciding the bills on merits. ¶ 1

6.5-representation-as-appropriate-remedy Counsel for the Electricity Department submitted, and the Court accepted, that the Executive Engineer under clause 6.5 was the appropriate authority for the petitioner's billing grievance. ¶ 1

billing-objection-to-executive-engineer-under-6.5 The petitioner was directed to file its objection within a week; the Executive Engineer was then to consider it under clause 6.5 and pass an order in accordance with law within one month. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE DISPUTED ELECTRICITY BILLS AND OF THE RECOVERY CITATION DATED 23.06.2020 ON MERITS.

Left to the Executive Engineer under clause 6.5; recovery kept in abeyance pending that decision. ¶ 1